From: Stephanie R[redacted]
To: National Listings
Subject: FW: 2023/3361 Reid - NDIS Commissioner Stay INTH
Date: Thursday, 3 October 2024 5:24:03 PM
Attachments: memo 3 october 2024.docx
Directions 3 Oct 2024.doc
LN sent 3 Oct 2024.doc
Directions 17 June 2024.doc

Stephanie R[redacted]
National Listing Manager

Administrative Appeals Tribunal
General & Other Divisions

T: [redacted]
E: [redacted]aat.gov.au

www.aat.gov.au

From: Daniel K[redacted] <[redacted]aat.gov.au>
Sent: Thursday, October 3, 2024 4:39 PM
To: Kathryn McMillan KC <[redacted]aat.gov.au>
Cc: Gina Lazanas <[redacted]aat.gov.au>; Stephanie R[redacted] <[redacted]aat.gov.au>
Subject: 2023/3361 Reid - NDIS Commissioner Stay INTH

Dear DP McMillan,

I refer to the following matters:

- **2023/3361: Ms Vida Reid and Commissioner of the NDIS Quality and Safeguards**
- **2023/3363: Mr Simon Reid and Commissioner of the NDIS Quality and Safeguards**
- **2023/4494: Forward Focused Group Pty Ltd (FFG)** and **Commissioner of the NDIS Quality and Safeguards**.

- These are regulation and discipline matters.

As per Gina's instructions, you are requested to hear the stay application & confidentiality request over a medical report at an **interlocutory hearing by video** (1/2 day) **on 25 November 2024 at 10:00AM Perth time, 12:00PM Brisbane time**. If you have any difficulty hearing this on 25 November 2024, please reach out to the National Listing team as soon as possible.

Please see attached directions issued on 3 October 2024, which vacated directions dated 17 June 2024 and timetabled for submissions towards the INTH. Please note that following the start of the ART Act, these matters will sit in the Taxation and Business List jurisdiction

area whereas previously they were in the NDIS division. Gina has requested that following the INTH Stay Application decision, you make directions to progress the matter.

I've also attached my memo prepped for Gina, for your reference - it may provide some context on the matter.

Yours sincerely,

Daniel K s47E(c)

Associate

Administrative Appeals Tribunal

General & Other Divisions

Sydney Registry

T: s47E(d)

E: s47E(d) aat.gov.au

www.aat.gov.au

Administrative Appeals Tribunal

MEMO

To: Deputy President G Lazanas

Ref: **2023/3361; 2023/3363; 2023/4494**

From: Daniel K

Subject: **Reid; Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission (matter held with Brisbane registry, parties in Perth)**

Case Management Directions Hearing by telephone on 3 October 2024 at 11:00AM Sydney; 9:00AM Perth

Associated matters

- 2023/3361: Ms Vida Reid
- 2023/3363: Mr Simon Reid
- 2023/4494: Forward Focused Group Pty Ltd (FFG)

APPEARANCES

Applicant	Respondent
Mr Jason Raftos Counsel 0401 172 673 **Tom Monks** Tom & Co Legal 08 6255 5737 0401172673 **Applicants** (Mr and Mrs Reid) 0478 880 685	**Julie Moore** Counsel s47F Karlie Dickinson AGS 0497 538 784 Danae Younger AGS? Observing s47F

I. PURPOSE

- Context: There is an ongoing adjournment of proceedings 2023/3361 (Ms Reid) and 2023/4494 (FFG) by directions issued 17 January 2024. See **Interlocutory Stay Application**.

- On 6 August 2024, the Tribunal received a request for the following directions to be made due to Ms Reid's health issues:
  - 1. The proceedings for Ms Vida Reid (2023/3361) and Forward Focused Group Pty Ltd (2023/4494) be stayed until further order of the Tribunal; and
  - 2. The parties have liberty to apply on seven days' notice.
- The respondent requested a CMTDH to progress this matter.

- We do not appear to have received (as per directions dated 17 June 2024):
  - R's SFIC, due 31 July 2024
  - A's submissions in reply, due 7 August 2024
  - Hearing Certificates, due 14 August 2024
- This was due to the Applicant's delay in filing their SFIC (additionally noting no evidence was filed).
- The Respondent sought an EOT to file their SFIC (email dated 31 July 2024), however no directions were issued by the Tribunal (this seems to be due to the internal changes in the Tribunal).
- The Respondent also notes that no SFIC or further evidence has been filed in FFG and Mr Reid's applications

Interlocutory Stay Application - ongoing

- On 11 October 2023, the Respondent lodged an interlocutory application, requesting a stay of all three AAT proceedings pending the outcome of the criminal proceedings against Mrs Reid.
- On 17 January 2024, the parties attended an interlocutory hearing with respect to staying the current proceedings. The Tribunal made Directions for Ms Vida Reid and FFG applications to be adjourned pending the termination or resolution of the criminal proceedings against Ms Vida Reid.
  - Ms Vida Reid and Forward Focus Group do not oppose the application for a stay in relation to their application.
  - In their submissions, Mr Reid his application to proceed and opposes the stay application due to the following reasons:
    - Mr Reid has suffered and continues to suffer financial detriment. A stay will be to his financial prejudice.
    - Mr Reid has suffered reputational damage and an indefinite stay will prevent him having the opportunity to clear his name
    - Mr Reid wishes to hold the Commissioner to account.
  - The Respondent submits that:
    - [8]-[9] of submissions filed 28 Feb 2024:
    - the prospect of the applicant being required to give evidence, and being subject to cross-examination, in relation to the same transactions which would be the subject of the possible criminal proceedings is sufficient to create a plausible apprehension of injustice and therefore contempt of any criminal proceedings which may be commenced"
    - given the same factual circumstance will need to be considered by the Tribunal in determining whether the banning order made against Simon Reid is reasonable, there is a significant risk that "potential damage…..could be caused to criminal proceedings if the jury were to learn that this Tribunal had made findings against the applicant…."

Interlocutory Application for Confidentiality orders - granted

- On 21 June 2024, the Respondent lodged an application for a confidentiality order over a document titled 'Tactical Intelligence Report – Project Archer' dated 18 August 2022.
- The confidentiality order sought was granted by the Tribunal, order dated 26 July 2024.

II. DECISION UNDER REVIEW

- 2023/3361 (Ms Reid): By a reviewable decision dated 21 April 2023, the NDIS Quality and Safeguards changed the legislative basis and extended the scope of the original banning order imposed on Mrs Reid.
- 2023/4494 (FFG): By a reviewable decision dated 8 June 2023, the NDIS Quality and Safeguards varied its original decision, reducing a 10-year banning order to 3 years against Forward Focused Group.
- 2023/3363 (Mr Reid): By a reviewable decision dated 21 April 2023, the NDIS Quality and Safeguards extended the scope of the original banning order imposed on Mr Reid, to make it explicit that Mr Reid should have no involvement with the NDIS sector.

III. FACTUAL BACKGROUND

2023/4494:

- On 20 December 2022, the original decision-maker made a banning order against FFG, prohibiting it from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of 10 years, under section 73ZN(1)(a) of the NDIS Act, on the basis that the registration of FFG as a registered NDIS provider had been revoked. The banning order took effect from 5:30pm (AWST) on 20 December 2022.
- FFG was formerly a registered NDIS provider operating in Western Australia, until 20 December 2022 when a delegate of the NDIS Commissioner revoked the registration of FFG.
- In relation to FFG, Mrs Reid was:
  i. i. the co-director from 28 August 2020 to 3 January 2021;
  ii. ii. the sole director from 4 January 2021 to 20 October 2022; and
  iii. iii. the co-director from 21 October 2022 to 1 November 2022.

- Mr Simon Reid, who is the husband and business partner of Mrs Reid, was a co-director of FFG from 28 August 2020 to 3 January 2021 and from 1 November 2022 to present.

- Criminal charges against Mrs Reid: On 19 October 2022, Mrs Reid was arrested and charged with several offences under sections 135.1(3) and 400.9(1) of the Criminal Code (Cth), which is contained in the Schedule to the Criminal Code Act 1995 (Cth). Those charges related to Mrs Reid allegedly defrauding the NDIS and using FFG as a vehicle through which to perpetrate that fraud.

IV. DIRECTIONS MADE as at 1 October 2024

There is an ongoing adjournment of proceedings 2023/3361 (Ms Reid) and 2023/4494 (FFG) by directions issued 17 January 2024. These directions also provide timetabling for submissions towards an INTH to hear the stay application.

Directions dated 17 June 2024 extend the timetable created by directions dated 15 May 2024, providing for the filing of SFICs, evidence, submissions and HC's.

V. MATERIALS FILED as at 1 October 2024

Filed by the Applicant
- SFIC (Mr Reid), filed 15 July 2024

Filed by the Respondent
- Hearing tender bundle, filed 17 June 2024
- Submission regarding s35 confidentiality order application, filed 12 September 2023
- T-Docs, filed 10 August 2023

Regarding the Stay Application lodged by the Respondent
- R Submission, filed 2 November 2023
- A Submission, filed 17 November 2023
- R Submission, filed 29 November 2023
- A Supplementary Submission, filed 13 February 2024
- R Submission in reply, filed 28 February 2024

Hearing Report 3 October 2024

- Ms Reid's health issues and requested directions
    - Email of 6 Aug
- A: R hasn't filed SFIC because they want to deal with all applications together?
- Confidentiality orders sought over medical records
-

R:
- R can file a SFIC by the end of this week, but based on the matters being heard together.

DPL:
- Directions in relation to SFICs can be made after the INT issue is decided.
- Late November for the INTH. DP will hear the stay application.
    - A unavailable dates: 1-15 Nov, 18-22 Nov. Available week beginning 25 Nov & 2 Dec.
    - R unavailable dates: Available week beginning 25 Nov & 2 Dec.

DIRECTIONS MADE & MAKE LISTING

1. the Direction dated 17 June 2024 (in relation to all proceedings, namely, 2023/3361, 2023/3363 and

2023/4494) is vacated.

2. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **24 October 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report.

2. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **14 November 2024**, the Respondent shall file with the Tribunal and serve on the Applicants any written submissions and evidence in relation to the Applicants' stay application and request for confidentiality regarding a medical report.

3. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **21 November 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions in reply or notify the Tribunal and the Respondent in writing that there are no submissions in reply.

4. the matter be listed for an interlocutory hearing regarding the Applicants' stay application and request for confidentiality regarding a medical report on 25 November 2024 at 10:00AM (Perth time).

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361 2023/3363 2023/4494
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President G Lazanas

DATE: 3 October 2024

PLACE: Perth

The Tribunal DIRECTS:

1. the Direction dated 17 June 2024 (in relation to all proceedings, namely, 2023/3361, 2023/3363 and 2023/4494) is vacated.

2. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **24 October 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report.

3. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **14 November 2024**, the Respondent shall file with the Tribunal and serve on the Applicants any written submissions and evidence in relation to the Applicants' stay application and request for confidentiality regarding a medical report.

4. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **21 November 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions in reply or notify the Tribunal and the Respondent in writing that there are no submissions in reply.

5. the matter be listed for an interlocutory hearing regarding the Applicants' stay application and request for confidentiality regarding a medical report on **25 November 2024** at **10:00AM** (Perth time).

……[SGD]……..
Deputy President G Lazanas

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361; 2023/3363; 2023/4494
Your Ref:

Contact Officer: Brisbane R

3 October 2024

Dear Sir/Madam

APPLICANT: Vida Reid
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Interlocutory Hearing by video - Stay application
Date: Monday, 25 November 2024
Time: 12:00PM Brisbane time; 10:00AM Perth time

Microsoft Teams Need help?
Join the meeting now

Dial in by phone
+61 2 9158 7123,,113479234# Australia, Sydney
Find a local number
Phone conference ID: 113 479 234#
Join on a video conferencing device
Tenant key: teams@tribunal.onpexip.com
Video ID: 132 110 423 7
More info

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Daniel K
For the Registrar

Telephone: (07) 3052 3000
Email: brisbane.registry@aat.gov.au

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	No: 2023/3361
	)	No: 2023/3363
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	No: 2023/4494

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President Mischin

DATE: 17 June 2024

PLACE: Perth

The Tribunal DIRECTS that the Directions made on 15 May 2024 be varied as follows:

1. In direction 2 by changing the date that the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing from 'On or before 26 June 2024' to '**On or before 10 July 2024**'.

2. In direction 3 by changing the date that the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing from 'On or before 17 July 2024' to '**On or before 31 July 2024**'.

3. In direction 4 by changing the date that the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions, from 'On or before 31 July 2024 to '**On or before 7 August 2024**'.

4. In direction 5 by changing the date that the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive from 'On or before 7 August 2024' to '**On or before 14 August 2024**'.



Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

From: Kathryn McMillan KC
To: National Listings
Cc: Madeleine S[redacted]
Subject: RE: 2023/3361 - Reid & Commissioner of the NDIS Quality & Safeguards Commission - Interloc Hearing - Stay application [SEC=OFFICIAL]
Date: Tuesday, 22 October 2024 1:54:20 PM
Attachments: image001.png

OFFICIAL

I can do this at a pinch .
Kathryn

Kathryn McMillan KC
Deputy President (part-time)
Administrative Review Tribunal

E [redacted]art.gov.au
P [redacted]
www.art.gov.au

Administrative Review Tribunal

From: National Listings <[redacted]art.gov.au>
Sent: Friday, October 18, 2024 11:49 AM
To: Kathryn McMillan KC <[redacted]art.gov.au>
Cc: National Listings <[redacted]art.gov.au>; Madeleine S[redacted] <[redacted]art.gov.au>
Subject: 2023/3361 - Reid & Commissioner of the NDIS Quality & Safeguards Commission - Interloc Hearing - Stay application [SEC=OFFICIAL]

OFFICIAL

Good Morning DP McMillan

We have scheduled an Interlocutory Hearing by video for a stay application for this matter to you.
2023/3361 – Reid & Commissioner of the NDIS Quality & Safeguards Commission

It is currently listed for 25 November 2024 for 12:00pm.

Could you please advise if you are available to hear this?

Unfortunately due to limited member availability we have had to book this whilst you were on leave.

Thank you

Carina N[redacted]
Senior Listing Officer (acting)
Administrative Review Tribunal

E [redacted]
P [redacted]
www.art.gov.au

Administrative
Review Tribunal

From: Madeleine S s47E(c)
To: National Listings
Cc: s47E(d) Kathryn McMillan KC
Subject: 2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission [SEC=OFFICIAL:Sensitive]
Date: Monday, 28 October 2024 5:20:06 PM
Attachments: image001.png

OFFICIAL: Sensitive

Dear NLT,

Please be advised this matter has been listed before DP McMillan for a telephone directions hearing from 10:00AM AEST-11:00AM AEST on Wednesday 6 November 2024.

Kind Regards,

Madeleine Ss47E(c)
Associate
Administrative Review Tribunal

E s47E(d) art.gov.au
P s47E(d)
www.art.gov.au

Administrative Review Tribunal

From:	Madeleine S s47E(c)
To:	National Listings; s47E(d)
Cc:	Kathryn McMillan KC
Subject:	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission [SEC=OFFICIAL:Sensitive]
Date:	Wednesday, 6 November 2024 7:37:36 PM
Attachments:	image001.png

OFFICIAL: Sensitive

Dear NLT and Michelle,

Please be advised this matter (and associated matters) have been listed before DP McMillan for a telephone direction hearing from 10:00AM AEST-11:00AM AEST on Thursday 14 November 2024.

Kind Regards

Madeleine Ss47E(c)
Associate
Administrative Review Tribunal

E s47E(d) art.gov.au
P s47E(d)
www.art.gov.au

Administrative
Review Tribunal

From: Madeleine S[redacted]
To: National Listings
Subject: 2023/3361 Reid & ors & NDIA QSC [SEC=OFFICIAL:Sensitive]
Date: Thursday, 14 November 2024 4:54:15 PM
Attachments: image001.png

OFFICIAL: Sensitive

Dear NLT,
Please be advised the IH in these matters on 25 November 2024 has been vacated.

Kind Regards,

Madeleine S[redacted]
Associate
Administrative Review Tribunal

E s47E(d) [redacted] art.gov.au
P s47E(d) [redacted]
www.art.gov.au

Administrative
Review Tribunal